

SUMMONS ISSUED

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

-----X
NAFEESHA PASHA,

Plaintiff,

-against-

THE CITY OF NEW YORK, JOSEPH
JACQUET, and JOHN and JANE DOES 1- 3

Defendants.
-----X

COMPLAINT

PLAINTIFF DEMANDS
A TRIAL BY JURY

FILED

IN CLERK'S OFFICE
U.S. DISTRICT COURT, E.D.N.Y.

Nafeesha Pasha, by her attorneys, Reibman & Weiner, as and for her
Complaint, hereby alleges as follows, upon information and belief:

BROOKLYN OFFICER, PARTIES, VENUE and JURISDICTION

1. At all times hereinafter mentioned, plaintiff Nafeesha Pasha, was an adult female resident of Kings County, in the State of New York.

2. At all relevant times hereinafter mentioned, defendant City of New York ("New York City"), was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including, but not limited to, the New York City Police Department ("NYPD"), and their employees.

3. At all relevant times hereinafter mentioned, defendant Joseph Jacquet (Tax 936803), was an adult male employed by the City of New York as a member of the NYPD. Jacquet is sued herein in his official and individual capacities.

4. At all relevant times hereinafter mentioned, defendants John and Jane Does 1-3, were adults employed by the City of New York as members of the NYPD. The Doe

0011-6365

GARAUFIS, J.

GO, M.J.

defendants are sued herein in their official and individual capacities.

5. This Court has jurisdiction of this action pursuant to 28 U.S.C. §§ 1331, 1343 and 1367, and 42 U.S.C. § 1983.

6. Venue is properly laid, pursuant to 28 U.S.C. Section 1391, et seq. in the Eastern District of New York, where the plaintiff and defendant City of New York reside, and where the majority of the actions complained of herein occurred.

7. That plaintiff timely served a Notice of Claim on the municipal defendant and complied with all conditions precedent to commencing an action under state law.

8. At least thirty days have elapsed since service of plaintiff's Notice of Claim and adjustment and payment thereof has been neglected or refused.

9. That the within action has been initiated within one year and ninety days of the happening of the events of which plaintiff complains.

RELEVANT FACTS

October 3, 2010 Incident

10. On October 3, 2010, early in the evening, plaintiff arrived home to find her 17-year-old daughter, N.G., with a hickey on her neck and in the company of a boy whom plaintiff did not know.

11. Plaintiff confronted N.G. and an argument ensued in the plaintiff's apartment and continued into the lobby of the apartment building. Two female neighbors from the building overheard the argument and intervened. Upon information and belief, one of the neighbors pinned N.G. against the wall in an attempt to subdue her.

12. At no time did plaintiff strike, push, shove, or otherwise assault or attempt

to assault N.G.

13. N.G. left the house and slept that night at a friend's house. She attended school the next day, on October 4, 2011.

Morning and Afternoon of October 4, 2011

14. On the morning of October 4, plaintiff contacted the Dean of N.G.'s high school, and informed the Dean that she wanted to make arrangements for her daughter to stay at Covenant House because she was having trouble with her at home.

15. In response to this conversation, the Dean called N.G. into her office to speak with her about the telephone conversation she just had with plaintiff and sent her to the guidance counselor.

16. The guidance counselor inquired about a small, partially healed scratch on N.G.'s forehead.

17. N.G. informed the guidance counselor that the scratch was old and that her mother did not cause the scratch. N.G. was sent back to class until the end of her Eighth Period when she was called back to the Dean's office. Sitting in the Dean's office was a member of the Administration for Children's Services ("ACS"), who then took N.G. to the 71st Precinct to discuss the scratch on her forehead with members of the NYPD.

18. Up to this point, N.G. had repeatedly informed school officials and ACS that her mother did not attack her, and that she did not know how she sustained the small scratch on her forehead.

19. In the station house, N.G. repeatedly informed members of the NYPD that,

while she and her mother had an argument on the previous day, her mother did not physically attack her, and she did not want to file a complaint against her mother.

20. Despite her protestations and unequivocal assertions that her mother had not attacked her, N.G. was forced to go to Kings County Hospital for treatment of non-existent injuries. She remained in the hospital for four hours before she was released to the custody of a downstairs neighbor in her mother's apartment building.

The October 4, 2011 Arrest

21. On October 4, 2010, at the request of members of ACS, plaintiff voluntarily went to the 71st Precinct station house where she fully cooperated with police officers and engaged in a friendly conversation with police officers and members of ACS.

22. After plaintiff had been at the station house for several hours, and despite the absence of any evidence of wrongdoing, as well as N.G.'s assertions that her mother did not assault her in any way, the defendants formally arrested plaintiff at the 71st Precinct.

23. The decision to arrest plaintiff was objectively unreasonable under the circumstances.

24. Plaintiff was then held in handcuffs at the 71st Precinct for several more hours and was strip searched the first of two times.

25. Plaintiff was then transferred to Kings County Central Booking, where she was strip searched a second time and held for many more hours before she was arraigned on a criminal complaint sworn to by defendants.

26. Defendant Jacquet swore out a criminal complaint in which he made false

allegations, including but not limited to, the assertion that N.G. informed him that she sustained injuries, pain, and fear during the argument with her mother that caused her to be treated at a local area hospital. Plaintiff was charged with various crimes pursuant to these false allegations.

27. It was objectively unreasonable for defendants to commence the plaintiff's prosecution for this alleged assault of N.G., as there was no evidence to support these charges, and the facts known to Jacquet and the Doe defendants were more consistent with innocence.

28. Jacquet also failed to incorporate statements of fact by N.G. that her mother had not attacked her and that she did not know when, where, or how she sustained the scratch.

29. There was no evidence to support these charges against plaintiff which were fabricated by defendants in order to cause plaintiff to be arraigned and prosecuted on such charges, and to cover up the defendants' unlawful conduct.

30. After her arraignment, plaintiff was released but required to return to court at a later date.

31. On October 19, 2010, the prosecution moved to dismiss all of the charges against plaintiff. The motion was granted and the case dismissed in plaintiff's favor.

32. At no time did there exist any basis to subject plaintiff to strip search, much less two strip searches, nor could any of the defendants have reasonably believed such searches were appropriate or necessary.

33. At no time prior to or during the encounter was there sufficient legal cause to believe that Ms. Pasha was engaged in any suspicious or unlawful activity.

34. At no time prior to or during the encounter was there probable cause to

arrest plaintiff.

35. At no time did any of the defendants take any steps to intervene in, prevent, or otherwise limit the misconduct engaged in by the defendants against Ms. Pasha.

36. The individual defendants intentionally and deliberately gave false statements and/or failed to file accurate or corrective statements, or otherwise failed to report the conduct of the defendants who engaged in the misconduct described herein as required.

37. That at all times relevant herein, the defendants were acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

38. Plaintiff repeats the allegations contained in paragraphs "1" through "37" above as though stated fully herein.

39. Defendants willfully and intentionally seized, searched, detained, and arrested plaintiff without probable cause, and maliciously prosecuted her without a reasonable basis to believe such cause existed.

40. Defendants willfully and intentionally subjected plaintiff to multiple strip searches, and did so without a reasonable basis to believe that such searches were appropriate, reasonable, lawful, or necessary.

41. By so doing, the individual defendants, individually and collectively, subjected the plaintiff to false arrest and imprisonment, unlawful searches of person and property, denial of due process, and malicious use and abuse of process, and thereby violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under the Fourth

and Fourteenth Amendments of the United States Constitution.

42. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of her constitutional rights.

SECOND CAUSE OF ACTION

43. Plaintiff repeats the allegations contained in paragraphs "1" through "42" above as though stated fully herein.

44. Defendant City of New York was responsible for ensuring that reasonable and appropriate levels of supervision were in place within and/or over the NYPD.

45. Defendant had actual or constructive knowledge that there was inadequate supervision over and/or within the NYPD with respect to its members' abuse of their authority, use of excessive force, abuse of arrest powers, and other blatant violations of the United States Constitution and the rules and regulations of the NYPD. Despite ample notice of inadequate supervision, defendants took no steps to ensure that reasonable and appropriate levels of supervision were put in place to reasonably ensure that NYPD members engaged in police conduct in a lawful and proper manner, including their use of their authority as law enforcement officers with respect to the general public, including, and specifically, the plaintiff herein.

46. The defendant City of New York deliberately and intentionally chose not to take action to correct the chronic, systemic, and institutional misuse and abuse of police authority by its NYPD employees, and thereby deliberately and intentionally adopted, condoned, and otherwise created through deliberate inaction and negligent supervision, an NYPD policy, practice, and custom of utilizing illegal and impermissible searches, arrests, and detentions, and

the manufacturing of evidence, in the ordinary course of NYPD business in flagrant disregard of the state and federal constitutions, as well as the Patrol Guide, up to and beyond the plaintiff's arrest.

47. All of the acts and omissions by the individual defendants described above were carried out pursuant to overlapping policies and practices of the municipal defendant in their capacities as police officers and officials pursuant to customs, policies, usages, practices, procedures and rules of the City and the NYPD, all under the supervision of ranking officers of the NYPD

48. The aforementioned customs, practices, procedures, and rules of the City and the NYPD include, but are not limited to, the following unconstitutional practices:

- a. Using excessive force on individuals, including but not limited to those who have already been handcuffed;
- b. Failing to supervise, train, instruct and discipline police officers and encouraging their misconduct;
- c. Discouraging police officers from reporting the corrupt or unlawful acts of other officers;
- d. Retaliating against officers who report police misconduct; and
- e. Failing to intervene to prevent the above-mentioned practices when such intervention is reasonably available.

49. The existence of aforesaid unconstitutional customs and policies may be inferred from repeated occurrences of similar wrongful conduct, as documented in the following, non-exhaustive list of civil actions:

- a. *Thompson v. City of New York*, 10-CV-3603 (ARR) (SMG) (E.D.N.Y.)

- b. *Lotorto v. City of New York*, 10-CV-1223 (ILG) (JMA) (E.D.N.Y.);
- c. *Zabala v. City of New York*, 37711/2010 (Sup. Ct., Kings Co.);
- d. *Ashe v. City of New York*, 09-CV-9696 (GBD) (THK) (S.D.N.Y.);
- e. *Long v. City of New York*, 09-CV-9216 (AKH) (S.D.N.Y.);
- f. *Moise v. City of New York*, 09-CV-9855 (DC) (JLC) (S.D.N.Y.)
- g. *Taylor-Mickens v. City of New York*, 09-CV-7923 (RWS) (S.D.N.Y.)
- h. *Carmody v. City of New York*, 05-CV-8084 (HB), 2006 U.S. Dist. LEXIS 83207;
- i. *McMillan v. City of New York*, 04-CV-3990 (FB) (RML) (E.D.N.Y.);
- j. *Avent v. City of New York*, 04-CV-2451 (CBA) (CLP) (E.D.N.Y.);
- k. *Smith v. City of New York*, 04-CV-1045 (RRM) (JMA) (E.D.N.Y.);
- l. *Powers v. City of New York*, 04-CV-2246 (NGG) (E.D.N.Y.);
- m. *Dotson v. City of New York*, 03-CV-2136 (RMB) (S.D.N.Y.);
- n. *Nonnemann v. City of New York*, 02-CV-I0131 (JSR) (AJP) (S.D.N.Y.);
- o. *Richardson v. City of New York*, 02-CV-3651 (JG) (CLP) (E.D.N.Y.);
- p. *Barry v. New York City Police Department*, 01-CV-10627 (CBM) (S.D.N.Y.);
- q. *Walton v. Safir*, 99-CV-4430 (AKH) (S.D.N.Y.);

- r. *White-Ruiz v. The City of New York*, 93-CV-7233 (DLC) (MHD) (S.D.N.Y.);
- s. *Ariza v. City of New York*, 93-CV-5287 (CPS) (E.D.N.Y.);

50. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration -- through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department -- there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

51. Furthermore, more than half the time that the Civilian Complaint Review Board refers substantiated complaints against officers to the NYPD for disciplinary action, the NYPD either simply issues a verbal warning or drops the charges altogether.

52. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York was deliberately indifferent to the risk that the inadequate level of supervision would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiff's rights in particular.

53. By reason thereof, defendant has violated 42 U.S.C. §1983 and caused plaintiff to suffer emotional and physical injuries, mental anguish, incarceration and the deprivation of liberty, and the loss of her constitutional rights.

THIRD CAUSE OF ACTION

54. Plaintiff repeats the allegations contained in paragraphs "1" through "53" above as though stated fully herein.

55. Plaintiff was subjected to false arrest, false imprisonment, unlawful searches and malicious prosecution by the defendants.

56. At no time did defendants have any legal basis for arresting or imprisoning plaintiff, commencing criminal process, or strip searching plaintiff, nor was there any reasonable basis to believe said conduct set forth herein was lawful, reasonable or otherwise appropriate.

57. The defendants are therefore liable to plaintiff for false arrest, false imprisonment, unlawful searches, and malicious prosecution by the defendants.

58. By reason thereof, defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, the loss of her constitutional rights, and unlawful incarceration.

FOURTH CAUSE OF ACTION

59. Plaintiff repeats the allegations contained in paragraphs "1" through "58" above as though stated fully herein.

60. Defendants willfully and intentionally seized, arrested, and imprisoned plaintiff without cause, and without a reasonable basis to believe such cause existed, and in so doing, violated, conspired to violate, and aided and abetted in the violation of plaintiff's rights under Article 1, §§11, 12 of the Constitution of the State of New York.

61. Defendants' violation of plaintiff's state constitutional rights was knowingly undertaken with the intent to deny the plaintiff her right to full and equal benefit of the laws of the State of New York.

62. By reason thereof, defendants have caused plaintiff to suffer emotional and physical injuries, mental anguish, and the loss of her constitutional rights.

DEMAND FOR A JURY TRIAL

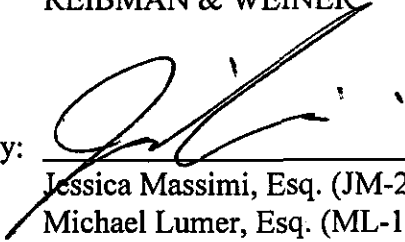
Pursuant to Fed. R. Civ. P. 38, Plaintiff hereby demands a jury trial of all issues capable of being determined by a jury.

WHEREFORE, the plaintiff demands judgment against defendants jointly and severally as follows:

- i. on the causes of action one through four, actual and punitive damages in an amount to be determined at trial;
- ii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of this action; and
- iii. such other relief as the Court deems just and proper.

Dated: Brooklyn, New York
December 30, 2011

REIBMAN & WEINER

By: 

Jessica Massimi, Esq. (JM-2920)

Michael Lumer, Esq. (ML-1949)

Attorneys for Plaintiff

26 Court Street, Suite 1808

Brooklyn, New York 11242

(718) 522-1743